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IT is hereby notified that the Minister of Energy and Power Development, after consultation with the Zimbabwe Energy Regulatory Authority, in terms of section 65 of the Electricity Act [*Chapter 13:19*], has made the following regulations:—

Title

1. These regulations may be cited as the Electricity (Provision of Backbone Infrastructure) Regulations, 2026.

Interpretation

2. In these regulations, unless the context otherwise requires—

"backbone infrastructure" refers to high and medium voltage power distribution network necessary to connect individual low voltage service connections;

"connection charges" refers to the amount due and payable to the utility for the initial connection of a stand, property, or unit to the electricity supply network (these charges are approved by the Authority from time to time and vary according to stand type, location, and connection classification (standard or non-standard));

"high voltage network" refers to the electricity distribution network of line voltages above 0.65 kilovolts;

"land developer" means any natural or juristic person engaged in the acquisition, planning, servicing, financing, subdivision, or construction of land for the purpose of improving, developing, or enhancing its value and utility, including the provision of serviced stands, housing units, or commercial sites for sale, lease, or other disposal to individuals, entities, or institutions;

"licensed electricity utility" refers to the Zimbabwe Electricity Transmission & Distribution Company (Private) Limited, the sole owner of electricity backbone infrastructure in Zimbabwe, in accordance with the Electricity Act [*Chapter 13:19*];

"low voltage network" refers to the electricity distribution network of line voltages below 0.25 kilovolts;

"medium voltage network" refers to the electricity distribution network of line voltages between 0.25 kilovolts and 0.65 kilovolts;

"standard connection" refers to a connection to the electricity supply network where existing high voltage or medium voltage mains are available within reasonable proximity and no immediate construction of additional backbone infrastructure is required.

Application

3. These regulations shall apply to all local authorities, land developers, and independent distribution licensees.

Objects

4. The objectives of these regulations are to—

(a) regulate and facilitate the development of electricity infrastructure within new or expanding property developments, ensuring that all electrical works undertaken by land developers meet approved technical, safety, and operational standards; and

(b) provide a framework for the integration of new developments into the national electricity grid, including procedures for connection approval, inspection, and certification of developer-installed infrastructure by the licensed transmission or distribution utility; and

(c) define the roles, responsibilities, and obligations of land developers undertaking the financing, installation, and commissioning of electricity infrastructure within new subdivisions, housing estates, industrial parks, or other developments; and

(d) promote public–private collaboration in electricity network expansion by enabling developers to construct distribution infrastructure at their own cost under approved specifications; and

(e) protect consumers and the public interest by ensuring that all electricity infrastructure installed by developers is—

(i) compliant with national electrical codes and safety standards;

(ii) designed and installed by qualified and licensed professionals; and

(iii) subject to testing, verification, and certification before energisation or grid connection;

and

(f) establish procedural requirements for the submission, approval, and registration of developer-installed electricity networks, including timelines for inspection, certification, and the conditions under which such

infrastructure may be vested in, or transferred to, the licensed utility; and

(g) support orderly urban and rural electrification, ensuring that electricity infrastructure developed by private actors aligns with national energy planning objectives, grid expansion priorities, and environmental standards.

Provision of electricity backbone infrastructure

5. (1) Every land developer shall be required to provide electricity backbone infrastructure as an essential component of the services to be rendered to all stands or properties earmarked to enhance its value and primary distribution licensee.

(2) The electricity backbone infrastructure shall include, but is not limited to—

(a) medium and low voltage distribution lines;

(b) transformers;

(c) mini-substations or feeder pillars where applicable;

(d) service connection points and metering-ready interfaces;

(e) trenching and cable laying:

(f) protective structures; and

(g) any other ancillary works necessary to ensure safe and reliable electricity supply.

(3) Every land developer within an area where a local authority provides roads, water and sewerage infrastructure, shall be required at their own development costs to source the necessary materials and construct the electricity backbone infrastructure.

(4) All electricity backbone infrastructure works shall be integrated into the approved layout plan submitted to the local authority, coordinated with the licensed electricity utility (utility) to ensure compatibility with existing or planned grid infrastructure prior to commissioning and handover to the primary distribution licensee.

(5) The cost of providing electricity backbone infrastructure shall not be recoverable from the utility and shall be borne entirely by the land developer as part of the development obligations.

(6) Failure to comply with the provisions of this section shall render the development non-compliant and subject to enforcement measures, including but not limited to—

(a) suspension or revocation of the development permit;

(b) withholding of rates clearance or subdivision approval; and

(c) penalties as specified under these regulations.

Transfer of ownership

6. (1) Upon completion of the electricity backbone infrastructure, and subject to successful inspection and certification by the utility, the land developer shall, at no cost to the utility transfer ownership of the electricity backbone infrastructure to the primary distribution licensee.

(2) The primary distribution licensee shall assume full responsibility for the operation and maintenance of the electricity backbone infrastructure from the date of formal handover and commissioning.

(3) The land developer shall provide a warranty for the electricity backbone infrastructure for a period of five years from the date of commissioning.

(4) The inspection referred to in subsection (1) shall be conducted by the utility or its appointed representative within fourteen working days of notification of completion by the land developer, and a formal certificate of acceptance shall be issued upon successful inspection.

Obligations of land developer

7. (1) Every land developer undertaking electrical infrastructure development shall—

(a) notify the primary distribution licensee in writing of any proposal to undertake any electrical infrastructure development attaching Surveyor-General's approved proposed stands layout maps (both physical copies and Geographical Information System (GIS) soft copy in

prescribed format) and shall obtain approvals from the primary distribution licensee prior to commencing the development activity;

(b) acquire and register appropriate wayleaves and easements from the relevant authorities for overhead power lines, underground cables, distribution fused pillars, underground distribution pillars, substations and any other relevant infrastructure required in consultation with the primary distribution licensee on newly created lots with the Deeds Office;

(c) ensure that all design, installation, and construction work related to the electricity backbone infrastructure are carried out only by consultants and contractors who are registered with the primary distribution licensee;

(d) in the event that the land developer fails to meet the technical, procedural, or safety requirements necessary for the energisation of the backbone infrastructure, the responsibility for regularising the works shall rest solely with the land developer (all associated costs shall be borne by the developer, and no reimbursement shall be claimed from the primary distribution licensee).

(2) No stand or property within the development shall be sold, leased, or otherwise disposed of until the land developer has demonstrated full compliance with these regulations.

Obligations of primary distribution licensee

8. The primary distribution licensee shall—

(a) undertake assessments of any proposed development to determine electricity infrastructure requirements and alignment with existing grid capacity;

(b) support the land developer in acquiring all necessary wayleaves and servitudes from the local authority or other relevant bodies;

(c) prepare and approve electrical backbone infrastructure designs, technical specifications, bills of quantities, and cost estimates in accordance with approved engineering standards and any statutory requirements;

(d) review and issue formal approvals to land developers prior to commencement of any electricity infrastructure works;

(e) inspect and approve the works being carried out by the contractor or consultant in construction of the backbone infrastructure in accordance with relevant primary distribution licensee guidelines;

(f) assume full responsibility for the operation and maintenance of the electricity backbone infrastructure upon formal transfer of ownership from the land developer.

Obligations of local authorities

9. (1) A local authority shall, upon receipt of a complete application from a land developer, assess the proposed development for compliance with the requirements of these regulations.

(2) Where the local authority is satisfied that the land developer has met all prescribed conditions, it shall issue a development permit authorising the commencement or continuation of the development.

(3) A local authority shall maintain a register of all development permits issued under these regulations and shall share such information with the primary distribution licensee and other relevant authorities to facilitate infrastructure planning and service delivery.

(4) In cases of non-compliance by the land developer, the local authority shall have the power to suspend, revoke, or withhold the development permit until corrective measures are undertaken by the land developer.

Obligations of stand or property owner

10. Every individual stand or property owner shall be responsible for the payment of the approved electricity connection fees as determined by the primary distribution licensee.

Subdivision and consolidation

11. (1) Any overhead or underground electricity supply crossing the new property boundaries in view of subdividing or consolidating an

existing serviced lot or area with existing multiple power services shall be removed or rerouted with the approval of the primary distribution licensee.

(2) The cost of carrying out such works referred to in subsection (1) and related modification to the existing network infrastructure shall be borne by the initiating party.

Independent distribution licensee

12. (1) Subject to these regulations and such other terms and conditions as the Authority may fix in the licence, an independent distribution licence may authorise for private sector companies to reticulate unserved areas.

(2) The licensing shall be done through a competitive bidding procurement process as per the procurement framework outlined in the Schedule and the Authority shall be responsible for the process.

(3) Independent distribution shall include metering, billing, operation and maintenance of the infrastructure.

(4) The independent distribution licensee can procure electricity from the primary transmission or distribution licensee at bulk supply, IPPs or investing in generation (generation license will be required) to supply their respective areas.

(5) The independent distribution license shall have a renewable tenure of twenty-five years subject to renewal conditions.

(6) Where the independent distribution licensee fails to renew or complete the tenure of the licence—

(a) the primary distribution licensee shall have the first right of refusal; and

(b) in the event that the primary distribution licensee is not in the position to take over, the transfer shall be through a competitive bidding; and

(c) the competitive bidding process shall be as determined by the Authority; and

(d) the infrastructure shall go through valuation to determine the value which shall be approved by the Authority.

Operational obligations

13. (1) Every independent distribution licensee shall—

(a) manage, operate and maintain their infrastructure—

(i) to ensure a safety of their employees and members of public; and

(ii) reliable flow of electricity; and

(b) be responsible for connecting new customers to the network and addressing local outages and faults within approved guaranteed performance standards; and

(c) be responsible for the development and submission to the Authority consumer protection standards focusing on customer services and connection procedures.

(2) All independent distribution licensees shall comply with existing grid and distribution codes, guidelines, standard tariff structures, and harmonised investment frameworks that support grid expansion for universal service at fair cost.

Costing and tariffs

14. (1) Costs shall be contained with long-term operational efficiency and maintenance goals, to protect consumers from over-investment.

(2) End-user tariffs for electricity supplied by the independent distribution licensee shall not exceed the standard tariffs set for the primary distribution licensee, with approval and oversight from the Authority.

Service connection

15. (1) Connection fees and guidelines shall be determined by the distribution licensee and approved by the Authority.

(2) An individual in need of electricity service connection shall pay the approved connection fees for the installation of the meter and connection of power supply.

Standard connections

16. Where existing high voltage (HV) or medium voltage (MV) mains infrastructure is available within reasonable proximity to a development site, and supply can be extended without the need for immediate construction of additional backbone infrastructure, the primary distribution licensee shall apply a standard connection procedure.

Offences

17. Any person who contravenes the provisions of these regulations shall be guilty of an offence and liable to a fine not exceeding level 5 or to imprisonment for a period not exceeding six months or to both such fine and such imprisonment.

SCHEDULE (*Section 12*)

INDEPENDENT DISTRIBUTION LICENSEE PROCUREMENT

Tender committee and adjudication

The tender and adjudication committee shall be chaired by the Authority, with the ministry responsible for energy and the Zimbabwe Electricity Transmission Distribution Company being members.

Issuing of tender

The Authority shall flight the tender in terms of a competitive bid document designed and agreed by the Tender and Adjudication Committee.

The tender window shall be open for a period of thirty days.

Basis of selection or adjudication

(a) cost to execute the project – based on the design and bill of quantities (thirty *per centum*).

(b) technical capacity and competence (forty *per centum*).

(c) financial capacity (thirty *per centum*).

Licensing

Once a company has been selected through the competitive tendering process, the Authority shall proceed to issue the independent distribution licence to that selected bidder.

Conditions of licence

The following are the general licence conditions for independent electricity distribution—

(a) tenure – renewable twenty-five years;

(b) financial close to be attained in a period less than six months;

(c) project to be executed (after financial close) in a period less than twelve months;

(d) licensee must have customer charter approved by the Authority;

(e) licensee shall abide by the distribution code.